

Outcome	American	Trial Fee-Shifting	Complete Fee-Shifting
<i>Dispositions (percent of potential disputes)</i>			
Not filed	0.0%	28.4%	28.4%
Not answered	0.0%	25.5%	0.0%
Settled	88.1%	17.2%	63.9%
P abandons	0.0%	15.7%	3.6%
D defaults	0.0%	10.9%	0.6%
P loses trial	5.9%	1.0%	1.5%
P wins trial	5.9%	1.3%	2.0%
<i>Welfare (amount per potential dispute)</i>			
Meritorious-P shortfall	0.256	0.224	0.241
Nonliable-D burden	0.256	0.164	0.166
Liable-D excess burden	0.011	0.017	0.038
Gross outcome error	0.344	0.286	0.298
Real expenditures	0.336	0.183	0.225